

dismissal of the action. The clerk of the court is directed to serve plaintiff by mail a notice of Order to Show Cause and a copy of this order.

9. S-CV-0054351 Garvey-Altizer, Cheryl v. County of Placer

Motion for Leave to file Third Amended Complaint

Plaintiff requests leave to file a third amended complaint, which will repeat the allegations brought in the first amended complaint. Defendants Johnnie Hardy and Ruth Mary Hardy did not file a response. Defendants City of Lincoln and County of Placer do not oppose the motion, as long as the City and County are dismissed from the lawsuit with prejudice. The court grants plaintiff's motion for leave to file a third amended complaint. Plaintiff shall file and serve a third amended complaint on or before June 26, 2026.

10. S-CV-0055515 Henschel, Matthew v. Hengl, Kevin

The motion for disgorgement is dropped from calendar in light of the notice of withdrawal filed on May 6, 2026.

11. S-CV-0056157 Saetern, Tracy v. Donohue, Marty Wayne

Application for a Right to Attach Order ("RTAO")

Plaintiff seeks a RTAO and issuance of a writ of attachment as against defendant Marty Wayne Donohue in the amount of \$159,695.29 pursuant to Code of Civil Procedure section 483.010.

Code of Civil Procedure section 484.010 requires that prior to a writ being issued, the defendant must be served a copy of the summons and complaint as well as the notice of application and hearing and supporting documents. While the proof of service attached to the notice of application and hearing for RTAO shows service of the moving papers on defendant Marty Wayne Donohue by mail, a review of the court's file reveals insufficient evidence of the operative complaint. The proof of service filed December 24, 2025 purporting to show service of summons and complaint on defendant Donohue is deficient as it is unsupported by a declaration of diligence as required by Code of Civil Procedure section 415.20(b). The proof of service attached to the first amended complaint shows mailed service only which, in light of the deficient service of the initial complaint, is likewise deficient.

Additionally, plaintiff seeks to attach partnership assets. Plaintiff provides no explanation or briefing as to why service of this application should not be required as to the partner.

Aside from these procedural deficiencies, a RTAO may be issued for a claim for money based on contract of an amount based on contract where the total amount is fixed or readily ascertainable not less than \$500. (Code Civ. Proc., § 483.010, subd. (a).)